

NON-DISCLOSURE AGREEMENT

NIHAO PRIVILEGED SERVICES

RECITALS

This Non-Disclosure Agreement ("Agreement") is entered into as of January 13, 2026 (the "Effective Date"), by and between:

ITALY NIHAO GROUP LIMITED (HK) and its affiliates, corporations established under the laws of Hong Kong, United Kingdom, Luxembourg, and Italy, with principal offices at Room 905, Workingberg Commercial Building, 41-47 Marble Road, Hong Kong ("**Nihao**" or "**Disclosing Party**"),

AND

An EU Entity or legal person established and registered in accordance with EU law ("**Receiving Party**" or "**Participant**"), as identified in the registration form submitted to Nihao upon access to the Platform.

WHEREAS, Nihao operates the Nihao Privileged Services ("**Services**"), a digital platform facilitating trading, exchange, and transactions in Carbon Emissions Allowances ("CEA"), EU Emissions Allowances ("EUA"), and related carbon financial instruments;

WHEREAS, Nihao wishes to grant Receiving Party access to the Services and associated capabilities, subject to the execution and binding nature of this Agreement;

WHEREAS, in connection with such access, Receiving Party will have access to sensitive, proprietary, and confidential information regarding the Services, transaction data, pricing mechanisms, market intelligence, trading strategies, and other commercially sensitive information;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Nihao and Receiving Party agree as follows:

ARTICLE 1: DEFINITIONS

1.1 Confidential Information

"Confidential Information" means all information, data, communications, and materials disclosed by Nihao to Receiving Party in connection with the Platform, including but not limited to:

- (a) Technical information, specifications, algorithms, and system architecture of the Platform;
- (b) Pricing methodologies, trading algorithms, fee structures, and financial models;
- (c) Market analysis, trend data, participant information, and transaction patterns;
- (d) Proprietary software code, user interfaces, databases, and data management systems;
- (e) Strategic business plans, competitive strategies, and market positioning;
- (f) Customer lists, participant information, and transaction counterparties;
- (g) Financial performance data, operational metrics, and revenue information;
- (h) Legal documentation, regulatory filings, and compliance procedures;
- (i) Any information marked as "Confidential" or reasonably understood to be confidential given its nature;
- (j) Copies, derivatives, notes, or analyses of the above information.

Confidential Information does not include information that:

- (i) Is or becomes publicly available through no breach of this Agreement by Receiving Party;
- (ii) Was lawfully in possession of Receiving Party prior to disclosure, as evidenced by written records;
- (iii) Is independently developed by Receiving Party without reference to Nihao's Confidential Information;
- (iv) Is rightfully received by Receiving Party from a third party without confidentiality obligations;
- (v) Must be disclosed by law or regulatory authority (subject to Article 2.4).

1.2 Services

"Services" means the Nihao Privileged Services, including all associated software, systems, databases, user interfaces, and capabilities offered by Nihao.

1.3 Authorized Users

"Authorized Users" means employees, officers, directors, and professional advisors (legal, accounting, financial) of Receiving Party who have a legitimate need to access Confidential Information for purposes of evaluating or participating in Services trading activities.

1.4 Breach

"Breach" means any unauthorized disclosure, use, or dissemination of Confidential Information in violation of the terms of this Agreement.

ARTICLE 2: OBLIGATIONS OF RECEIVING PARTY

2.1 Protection of Confidential Information

Receiving Party agrees to:

- (a) Maintain all Confidential Information in strict confidence and not disclose it, either directly or indirectly, in whole or in part, without Nihao's prior written consent;
- (b) Limit access to Confidential Information to Authorized Users on a strict need-to-know basis;
- (c) Ensure that Authorized Users are informed of the confidential nature of the information and are bound by equivalent confidentiality obligations;
- (d) Use Confidential Information solely for the purpose of accessing and utilizing the Services and evaluating trading opportunities;
- (e) Not use Confidential Information for any competitive purpose, to obtain advantage over competitors, or for any purpose other than Platform participation;
- (f) Implement and maintain reasonable security measures (technical, administrative, and physical) to prevent unauthorized access, theft, or disclosure of Confidential Information;
- (g) Not reverse engineer, decompile, disassemble, or attempt to derive the source code or underlying technologies of the Platform;
- (h) Notify Nihao immediately upon becoming aware of any actual or suspected breach of confidentiality.

2.2 Restrictions on Disclosure

Receiving Party shall not, without Nihao's prior written consent:

- (a) Disclose the contents of this Agreement or the existence of Nihao's Services to any third party;
- (b) Disclose the fact that Receiving Party is a participant in negotiations or transactions through the Services;
- (c) Use Nihao's name, logo, or branding materials in any public announcement or marketing materials;
- (d) Share transaction details, pricing information, or counterparty identities with parties outside of Receiving Party's organization;
- (e) Transfer or sublicense access to the Services or any Confidential Information to third parties.

2.3 Return or Destruction of Confidential Information

Upon termination of this Agreement or upon Nihao's written request:

(a) Receiving Party shall promptly return or securely destroy all Confidential Information in its possession, including all copies, notes, and derivative materials;

(b) Receiving Party shall certify in writing within 10 business days that all Confidential Information has been destroyed or returned;

(c) Notwithstanding the above, Receiving Party may retain one archival copy in a secure, restricted-access environment solely for legal compliance purposes, provided such retention remains subject to confidentiality obligations and the EUR 10,000,000 penalty provision.

2.4 Required Disclosure by Law

If Receiving Party is required by law, regulation, court order, or competent authority (including EU regulators, financial authorities, or law enforcement) to disclose any Confidential Information:

(a) Receiving Party shall provide Nihao with prompt written notice of such requirement, except where legally prohibited;

(b) Receiving Party shall cooperate with Nihao to obtain protective orders or confidential treatment requests;

(c) Receiving Party shall disclose only the minimum information necessary to comply with the legal requirement;

(d) Receiving Party shall exercise all reasonable efforts to ensure such disclosed information remains subject to confidentiality protections.

ARTICLE 3: NIHAO'S RIGHTS AND RESPONSIBILITIES

3.1 Proprietary Rights

All intellectual property rights, including patents, copyrights, trademarks, trade secrets, and know-how related to the Platform, remain the exclusive property of Nihao. Nothing in this Agreement grants Receiving Party any ownership rights or licenses to Confidential Information, except the limited right to use such information for the purposes stated herein.

3.2 No Warranty

Nihao makes no warranty, express or implied, regarding the accuracy, completeness, timeliness, or fitness of Confidential Information for any particular purpose. Receiving Party acknowledges that all Confidential Information is provided "as is" and assumes all risks associated with its use.

3.3 No Obligation to Disclose

Nihao has no obligation to disclose additional information or enter into further agreements with Receiving Party.

ARTICLE 4: TERM AND TERMINATION

4.1 Duration

This Agreement shall enter into force on the Effective Date and shall continue for a period of **five (5) years** from such date, unless earlier terminated as provided herein.

4.2 Termination

(a) Either party may terminate this Agreement for convenience by providing thirty (30) days' written notice to the other party;

(b) Nihao may immediately terminate this Agreement upon written notice if Receiving Party materially breaches any provision and fails to cure such breach within fifteen (15) days of written notice;

(c) This Agreement shall immediately terminate upon Receiving Party's loss of authorization to access the Platform or upon cessation of Receiving Party's participation in Platform activities.

4.3 Survival

The obligations under Articles 2.1, 2.2, and 2.3 shall survive the termination of this Agreement indefinitely for any Confidential Information constituting trade secrets, and for a period of five (5) years for all other Confidential Information.

ARTICLE 5: REMEDIES AND ENFORCEMENT

5.1 Equitable Relief

Receiving Party acknowledges that monetary damages may be inadequate remedy for breach of this Agreement. Accordingly, Nihao shall be entitled to seek equitable relief, including injunctive relief and specific performance, without waiving any other remedies available at law or in equity.

5.2 Liability for Breach

Receiving Party shall be liable for any and all damages, losses, costs, and expenses (including reasonable attorneys' fees) incurred by Nihao as a result of Receiving Party's breach of this Agreement, whether direct, indirect, consequential, or otherwise. In addition to such damages, Receiving Party acknowledges and agrees that any material breach of this Agreement shall result in a liquidated damages penalty of **EUR 10,000,000 (ten million euros)**, which represents a reasonable pre-estimate of harm that would be difficult to quantify. This penalty shall be in addition to, and not in lieu of, any other remedies available to Nihao under this Agreement or applicable law.

5.2A Materiality of Penalties

The EUR 10,000,000 penalty shall apply to any breach involving: (i) unauthorized disclosure of Confidential Information; (ii) reverse engineering or attempted derivation of proprietary

technology; (iii) use of information for competitive purposes; (iv) transfer or sublicensing of access to third parties; or (v) any breach that causes commercial, reputational, or operational harm to Nihao. The parties acknowledge that a single breach may trigger multiple penalty exposures if it involves multiple violations.

5.3 Breach by Authorized Users

Receiving Party remains liable for any breach of this Agreement by Authorized Users and shall take all necessary measures to ensure their compliance with these obligations.

5.4 No Waiver

The failure of Nihao to enforce any provision of this Agreement shall not constitute a waiver of such provision or of any other rights under this Agreement.

ARTICLE 6: LIMITATIONS AND EXCLUSIONS

6.1 Scope of Confidentiality

Receiving Party's obligations under Article 1.1 (exclusions from Confidential Information) remain binding and shall not be construed to impose confidentiality obligations on information that falls outside the definition of Confidential Information.

6.2 Public Domain Information

Receiving Party may disclose information that enters the public domain through no breach of this Agreement by Receiving Party, provided that such disclosure is accompanied by a written statement documenting the source and manner of public disclosure.

ARTICLE 7: GOVERNING LAW AND DISPUTE RESOLUTION

7.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the jurisdiction in which the Receiving Party is established and registered, as follows:

(a) For Receiving Parties established in the European Union (including but not limited to Italy, Luxembourg, and other EU member states): The Agreement shall be governed by the laws of the Receiving Party's member state, with particular reference to that jurisdiction's contract law and data protection regulations;

(b) For Receiving Parties established in the United Kingdom: The Agreement shall be governed by the laws of England and Wales;

(c) For Receiving Parties established in Hong Kong: The Agreement shall be governed by the laws of Hong Kong;

(d) For Receiving Parties established in Luxembourg: The Agreement shall be governed by the laws of Luxembourg;

(e) For Receiving Parties established in Italy: The Agreement shall be governed by the laws of Italy.

In all cases, the parties expressly exclude the application of the United Nations Convention on Contracts for the International Sale of Goods and any conflict of law principles that would direct application to another jurisdiction's laws.

7.2 Dispute Resolution

(a) Any dispute, controversy, or claim arising out of or relating to this Agreement or its breach shall first be subject to good-faith negotiation between senior representatives of both parties;

(b) If negotiation fails within thirty (30) days, the dispute shall be submitted to binding arbitration;

(c) For Receiving Parties in the European Union, United Kingdom, or Luxembourg, the arbitration shall be conducted under the International Chamber of Commerce (ICC) Rules, with one arbitrator selected in accordance with such rules;

(d) For Receiving Parties in Hong Kong, the arbitration shall be conducted under the Hong Kong International Arbitration Centre ("HKIAC") Rules, with one arbitrator selected in accordance with such rules;

(e) The seat of arbitration shall be determined as follows:

- For EU/UK/Luxembourg Receiving Parties: London, England (or as mutually agreed in the EU member state of the Receiving Party);
- For Hong Kong Receiving Parties: Hong Kong;

(f) The language of arbitration shall be English;

(g) Each party shall bear its own costs, with arbitration fees and administrative costs shared equally;

(h) Notwithstanding the above, Nihao shall retain the right to seek preliminary injunctive relief in any competent court to prevent imminent breach or unauthorized disclosure.

7.3 EU Compliance

To the extent this Agreement involves processing of personal data, Receiving Party acknowledges compliance with the General Data Protection Regulation (EU 2016/679) ("GDPR") and applicable EU data protection laws. Nihao shall act as Data Processor or Joint Controller as defined by GDPR, and shall implement appropriate technical and organizational security measures.

ARTICLE 8: GENERAL PROVISIONS

8.1 Entire Agreement

This Agreement, together with any NDA amendments or schedules executed in writing by both parties, constitutes the entire agreement between the parties regarding the subject matter and supersedes all prior negotiations, understandings, and agreements, whether written or oral.

8.2 Amendments

This Agreement may be amended or supplemented only by written instrument signed by authorized representatives of both parties.

8.3 Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.

8.4 Assignment

Neither party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other party, except that Nihao may assign its rights to an affiliate or successor entity upon written notice. Any unauthorized assignment shall be void.

8.5 Notices

All notices, requests, and communications required under this Agreement shall be in writing and delivered:

- (a) Personally;
- (b) By registered mail, return receipt requested;
- (c) By email with read receipt (to the addresses specified in Platform registration documentation);
- (d) By overnight courier service.

Notices shall be effective upon receipt.

8.6 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures and PDF execution shall be binding and enforceable.

8.7 Waiver

No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving party. Waiver of any breach shall not constitute waiver of any other or subsequent breach.

8.8 Relationship of Parties

Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between Nihao and Receiving Party. Each party is an independent contracting entity.

8.9 Force Majeure

Neither party shall be liable for failure to perform obligations under this Agreement due to circumstances beyond its reasonable control, including acts of God, natural disasters, government actions, wars, epidemics, or Internet disruptions, provided that the affected party provides prompt notice and makes reasonable efforts to resume performance.

ARTICLE 9: ACKNOWLEDGMENTS AND REPRESENTATIONS

9.1 Authority

The person executing this Agreement on behalf of Receiving Party represents and warrants that they have full authority to bind Receiving Party to the terms and conditions hereof.

9.2 Legal Compliance

Receiving Party represents that its access to and use of the Platform and participation in carbon trading activities are in compliance with all applicable laws, regulations, and licensing requirements in its jurisdiction.

9.3 Sanctions and Compliance

Receiving Party represents that:

- (a) Neither Receiving Party nor any of its beneficial owners or officers are on any sanctions list maintained by the EU, UN, OFAC, or other competent authorities;
- (b) Receiving Party's participation in Platform trading does not violate anti-money laundering regulations, counter-terrorism financing laws, or foreign trade control laws;
- (c) Receiving Party shall promptly notify Nihao of any change in its compliance status.

9.4 Reading and Understanding

Receiving Party acknowledges that it has read this Agreement, understands its terms and conditions, and enters into it voluntarily and with full knowledge of its implications.

ARTICLE 10: CONTACT INFORMATION

For Nihao:

Italy Nihao Group Limited (HK)
Room 905, Workingberg Commercial Building
41-47 Marble Road

Hong Kong
Tel: +852-3062 3366
Email: compliance@nihaoplatform.com
Attention: Legal and Compliance Department

For Receiving Party:

Receiving Party shall provide contact information upon registration with the Platform.

ARTICLE 11: COUNTERPART EXECUTION

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures, including digital signatures and DocuSign, shall be binding and have the same legal effect as original signatures.

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date first written above.

FOR AND ON BEHALF OF ITALY NIHAO GROUP LIMITED (HK):

Signature: _____ 

Name and Title: CHRISTIAN MEIER

FOR AND ON BEHALF OF THE RECEIVING PARTY:

Organization Name: _____

Registration Number: _____

Signature: _____

Name and Title: _____

Date: _____

APPENDIX A: DEFINITIONS OF KEY TERMS

Term	Definition
CEA	China Emissions Allowances - allowances issued under China's national carbon market
EUA	EU Emissions Allowances - allowances issued under the EU Emissions Trading System

EU ETS	EU Emissions Trading System - the regulatory framework governing carbon allowance trading in the European Union
GDPR	General Data Protection Regulation (EU 2016/679) - the primary data protection regulation in the European Union
SEEE	Secondary Market for EU Emissions Allowances
Participant	An EU entity with registered account access to the Nihao Privileged Services

END OF AGREEMENT